

Ramesh Nair v Union of India (2022)

Court: Supreme Court of India | Year: 2022

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION - CIVIL APPEAL NO. 3050 OF 2022

RAMESH NAIR ... APPELLANT

VERSUS

UNION OF INDIA AND ORS. ... RESPONDENTS

JUDGMENT AND RATIO DECIDENDI:

- 1. Civil appeal regarding entitlement to disability pension under Armed Forces Pension Regulations 1961.
- 2. Core legal issue: Whether medical condition attributable to or aggravated by military service during high-altitude deployment.
- 3. Key facts: Appellant served 18 years in Indian Army. Invalided out due to hypertension. Armed Forces Tribunal denied disability pension.
- 4. HELD: Appeal allowed. In absence of medical record at time of enlistment, disability presumed attributable to service conditions.